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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

See attached file(s)

Please note that I am a software developer, I have worked with machine learning, I have learned the basics of creating an AI. So I know what I am talking about when I say that this is not how AI should be developed or used.

Please see the attached file for a more in depth comment

Attachments

AI Action Plan Comment

From:

Karin Kuo

Software Developer

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a software developer, I have worked with some machine learning programs, and learned the basics of AI in school and on my own.

So I know exactly what I am talking about when I say I do not like how AI is being used now by companies like OpenAI and Google.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. The unique work of hundreds of thousands of everyday American creators was taken and fed into these AI systems without their consent or any compensation. These systems ingest their work, reassemble it, and then sell it back to their clients – directly competing with them and cutting these creators out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by

Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.